



A COMMUNITY OF CHOICE

Planning and Development Department

2101 O'Neil Avenue, Suite 202, Cheyenne WY 82001
(Phone) 307-637-6282 (Fax) 307-637-6366

MEMO

To: Honorable Mayor Patrick Collins and Members of the City Council

From: Jeanie Vetter, PLA, Parks and Greenway Planner

Subject: Contract Modification #4, East Cheyenne Community Park Master Site
Development Plan

Date: April 18, 2023

1. Parks and Greenway Planning has been working on plans to begin construction efforts at the Kiwanis Community Park, located at the SW corner of E. Pershing and Whitney Road. These plans include a detention pond/constructed wetlands/open water area that will provide all detention needs for future improvements to be made at the park as well as improved wildlife habitat and water quality within Dry Creek. The project will include gravel walking paths surrounding the wetlands/detention area, two blinds for observing birds, and educational signage describing the Kiwanis Park Master Plan, wetland/riparian area wildlife, water quality and park history.
2. The contract modification before you is for additional consultant fees relative to design revisions that were necessitated by permitting requirements of the Wyoming Department of Environmental Quality (WYDEQ), United States Army Corp of Engineers (USACE) and State of Wyoming Engineers Office. The increased fees include environmental assessment to be performed by HDR for existing wetlands. The fees also include bidding and construction administration for construction of the project.
3. With approval of this contract modification, it is expected that final construction documents can be completed, and approvals can be obtained from WYDEQ, USACE and the State Water Engineers office by the end of this year or early next year and construction can begin in the spring of 2024.
4. WYDEQ has suggested that this project would be a good option for a 319 grant for water quality, available through their office. This grant would be a 60/40 match, with funding from \$20,000.00 to \$300,000.00 potentially available. Kiwanis Club of Cheyenne will support this project with \$80,000.00 in park sponsorship funds. Cheyenne Audubon Society and Cheyenne Greenway Foundation have committed \$5,500.00 to support the bird blind portion of the project.

5. Funding for this contract modification will come from the 2017 6th Penny Tax for the park.

Thank you in advance for your consideration. If you have any questions, please feel free to contact me.

Respectfully,
Jeanie Vetter

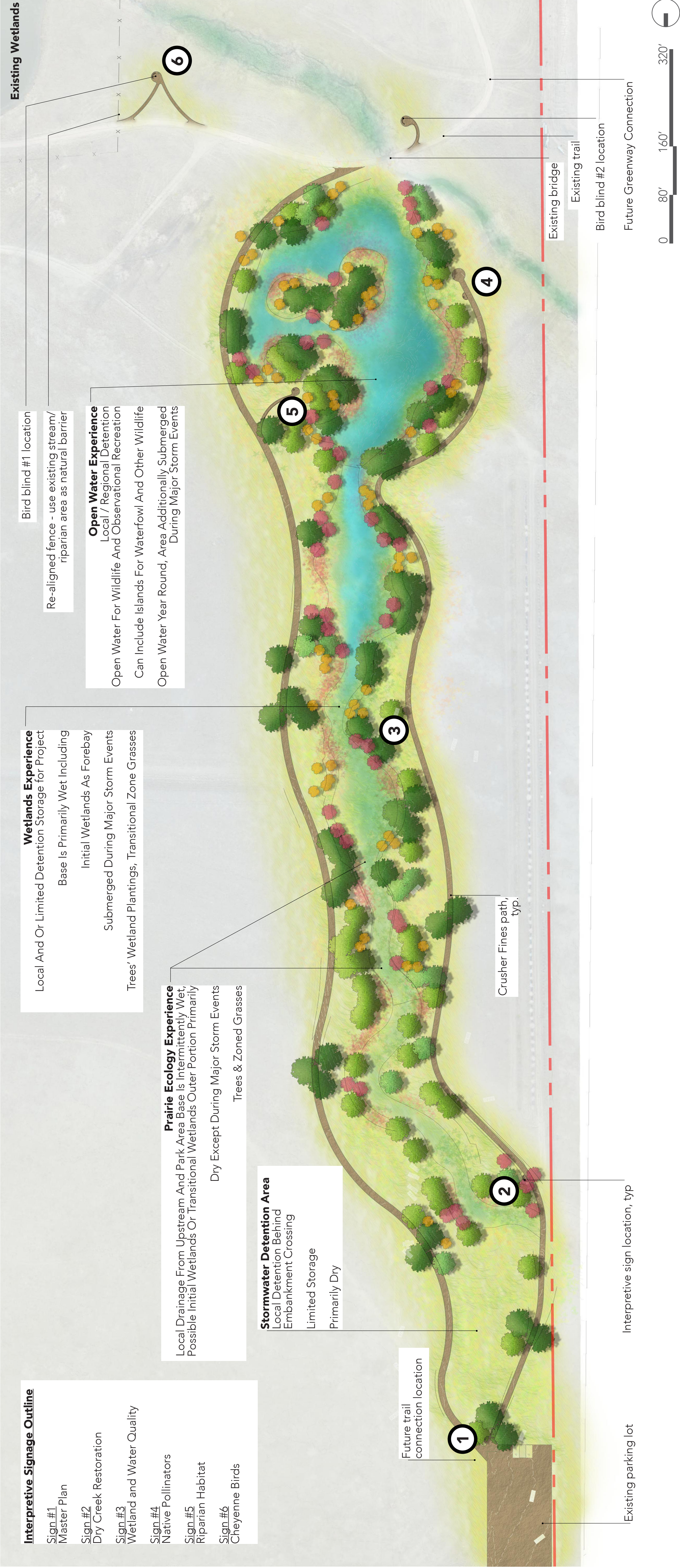
Enclosures:
Kiwanis Park Project Area Map
Kiwanis Park Concept Plan Rendering



Kiwanis Park Trail, Interpretive Signage and Dry Creek Restoration

Total Site Area 105 Acres

Area of Disturbance 12.65 Acres/551,399 SF



CITY OF CHEYENNE
CONTRACT MODIFICATION

APPROVED as to form only:
By Stefanie Boster at 12:08 pm, Apr 18 2023

Contract Modification: #4
Project: East Cheyenne Community Park Master Site Development Plan
Project Number: Contract # 7427
Contractor: Russell + Mills Studios
Date Prepared: April 18, 2023

The above referenced contract is amended or modified as set forth in the following and these amendments and modifications of the plans and specifications are agreed to by the parties. All other aspects of the original agreement remain unchanged and in full force and effect.

I. Description of Changes

Revised Construction Documents, Permitting, Bidding, and Construction Administration for construction of gravel trails, interpretive signage and Dry Creek restoration/alignment analysis at the park.

II. New Contract Items

Add plan revisions, environmental assessment and permitting based on USACE, WYDEQ and State Engineers Office requirements. Add bidding and construction administration.

III. Schedule

Time of Performance shall change to "The Consultant shall perform its services as expeditiously as is consistent with such professional skill and care and the orderly progress of the Project."

Term and Termination date shall change to May 31, 2025

IV. Summary

Original Contract Amount	\$83,260.00
Previous Modifications	\$36,865.00
Contract Amount Prior to this Modification	\$120,125.00
This Modification	\$30,115.00
New Contract Amount	\$150,240.00

V. GL Account Information

If requesting a modification to the contract price, please list GL account # to cover the balance of this modification (if using more than (1) GL account, list the dollar amount for each respective account):

GL# 030-17-1750-40-21301 Amount: \$30,115.00

VI. Approvals

City Project Manager: _____ Date: _____

Consultant/Contractor: _____ Date: _____

City of Cheyenne _____ DATE: _____

Mayor Patrick Collins

/

/ATTEST: City Clerk Kristina F. Jones



April 14, 2023

Jeanie Vetter, PLA
Greenway and Parks Planner - Planning and Development Department
Cheyenne WY

Re: East Cheyenne Park - Trail Plan, Interpretive Signage and Dry Creek Restoration - ADD SERVICE #1

Dear Jeanie,

In response to the recent on site meeting and on-going coordination with USACE and WYDEQ departments we are requesting an additional service for the subject project. The additional work is listed below.

ADDITIONAL SCOPE ITEMS

Revised Wetland/Open Water Layout - Based on the requirements from the USACE, the existing natural feature will be required to remain in place. Due to this requirement, the wetland/open water experience area will need to be revised. RMS will collaborate with CivilWorx regarding this area - specifically in regards to the general shape and location.

Verification of Master Plan impacts - Based on the new wetland area we would need to verify that this area will not impact the program to the east of the wetland area - specifically the planned soccer fields outlined in the master plan.

Revised Construction Documents - Based on the new wetland area our construction documents will need to be revised based on these changes. This includes trail realignment, relocation of signage and seeding/ planting plan revisions.

On-going Coordination - RMS will continue to coordinate and lead the project by organizing construction document submittals and scheduling any necessary meetings going forward. This coordination time will also include coordinating with environmental consultant.

Meetings - Meetings w/ Client, team - allow 2

OPTIONAL - Bidding/Construction Administration - Russel+Mills Studios will provide Construction Administration services as related to the landscape construction Scope, as defined. Construction Administration services shall include Review testing agency reports; Review of contractor's submittals and shop drawings; site visits, submittal of field reports communicating construction activities to the Client; plant selection and tagging at the source location for major trees and specimen material; Substantial Completion and preparation of a final punch list; and final inspection at completion of punch list corrections.

Construction administration will include (3) visits, that will include substantial and final walk(s). Field reports provided to contractor and City for records.

Additional Service Fee - Russell + Mills Studios

Based on our previous agreement, we will bill these additional services on an hourly basis not to exceed \$8,220.

Current contract amount	\$ 36,865
Russell + Mills Studios Add Service Amount	\$ 8,220
Civil Worx Add Service Amount	\$ 7,400
HDR - Environmental Assesment	\$ 5,495
Updated Contract Amount	\$ 57,980



OPTIONAL BIDDING AND CONSTRUCTION ADMINISTRATION SUPPORT

Russell + Mills Studios	\$ 3,500
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Civil Worx	\$ 5,500
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Grand Total (including add service amounts above)	\$ 66,980
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Sincerely,

A handwritten signature in black ink, reading "P.J. Mills", enclosed within a hand-drawn oval.

Paul Mills
Principal